

TRP(C)/293/2019 on 3 March, 2021

Author: Biswanath Rath

Bench: Biswanath Rath

TRP(C) No.293 of 2019

10. 03.03.2021

Heard learned counsel appearing for the parties.

This Transfer Petition has been filed by the wife-Petitioner seeking transfer of the C.P.No.134 of 2019 from the Court of learned Judge, Family Court, Nayagarh to the Court of learned Judge, Family Court, Bhubaneswar.

On perusal of the averments made in this petition and looking to the address in the application u/s 13 of the Hindu Marriage Act, 1955, involving C.P. No.134 of 2019, it appears, the husband has mentioned the address of the wife to be a resident of Plot No.64, Kalinga Vihar, P.O.-Kalinga Vihar, P.S.-Tamando, Bhubaneswar, Dist-Khurda.

Learned counsel for Petitioner referring to the grounds taken in this petition submitted that the petitioner is an unemployed lady and after being deserted by her husband, she is staying with her father at Bhubaneswar. As her husband did not allow her to stay in the in-laws house, finding no way out, she took shelter of the State Women Commission, Bhubaneswar on 28.11.2018. She also filed C.P. No.594/2019 against the opposite party-husband. As a counterblast, husband has also filed a proceeding u/s.13 of the Hindu Marriage Act, 1955, r/w. Section 7 of the Family Court Act, 1984, the same was registered as C.P. No.134 of 2019. Notice in the above case was served upon the petitioner. As her father is earning very meager amount, it is difficult on her part to bear the travelling expenses and other related expenditure for attending the proceeding pending in the court of learned Judge, Family Court, Nayagarh.

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Learned counsel for the husband on the other hand opposing the move of the wife submitted that he has no hesitation to pay the cost of travel expenses etc. to the wife for her attending the day-to-day proceeding at Nayagarh.

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He, however, did not dispute that husband in his proceeding has shown address of wife at Bhubaneswar in the district of Khordha.

Considering the submission made on behalf of

the wife-petitioner and looking to the financial status of the wife-Petitioner, this Court observes for husband required to attend the case at the instance of wife at Bhubaneswar, there would be no difficulty, if the case of the husband gets transferred to the learned Judge, Family Court, Bhubaneswar, rather it would be convenient for both the parties to attend in both the proceedings at one place. In the process, this Court directs for transfer of the C.P. No.134 of 2019 from the court of learned Judge, Family Court, Nayagarh to the court of learned Judge, Family Court, Bhubaneswar.

Petitioner is directed to serve a copy of this order on the learned Judge, Family Court, Nayagarh within a period of seven days hence and on receiving this order, learned Judge, Family Court, Nayagarh shall transmit the case records involving C.P. No.134 of 2019 within a period of two weeks thereafter, to the Court of learned Judge, Family Court, Bhubaneswar for its doing the needful. This Court also directs learned Judge, Family Court, Bhubaneswar to conclude the proceeding, vide C.P. No.134 of 2019 as expeditiously as possible, preferably, within a period of six months from the date of transmission of the records. For transfer of C.P. proceeding at the instance of the husband to Bhubaneswar, both parties are directed to file their appearance before the Family Court, Bhubaneswar after receipt of the case record on 19.03.2021.

This Court here records the undertaking of the wife-petitioner so also husband-opposite party through their counsels that they will co-operate the learned Judge, Family

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Court, Bhubaneswar in timely disposal of the Proceeding.

This order shall be communicated to the husband-Opposite Party at the cost of the wife-Petitioner, for which requisites by way of Speed Post with A.D. shall be filed within a period of three working days hence.

With the above observation and direction the Transfer Petition stands disposed of.

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Biswanath Rath, J.